

Performance Work Statement (PWS)

Tower Inspection and Maintenance

Part 1

General Information

- 1.1 **General:** This is a non-personal services contract to provide tower inspection and maintenance at Tobyhanna Army Depot (TYAD). The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.
- 1.2 **Description of Services/Introduction:** This will be a hybrid contract consisting of a One-time Repair for known structural deficiencies, Firm Fixed Price (FFP) for regularly scheduled inspections, and Time and Material (T&M) for unscheduled remedial on call repair work. The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform tower inspection and maintenance as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract. The number of towers/platforms specified in this PWS is subject to change any time during the period of performance. The contract may be modified through mutual agreement to change the total number of towers/platforms and adjust price accordingly.
- 1.3 **Objectives:** The objective of this Performance Work Statement (PWS) is to define the requirements for the performance of Safety Inspections and On Call Repair Work of multiple towers / structures located at Tobyhanna Army Depot (TYAD), Tobyhanna, (Monroe County), PA. The words “tower” and “structure” may be used interchangeably at occurrences in this SOW based on the context of the sentence/paragraph. (See Part 5).
- 330 FT Tower:
LMR Tower:
Building 32 Platform:
Building 31 Platform:
Tower Track Tower:
- 1.4 **Scope:** The Contractor shall perform full tower maintenance services on five (5) towers / structures in compliance with Telecommunications Industry Association (TIA) 222-H code requirements, manufacturer’s recommendations, and all other applicable laws, regulations, rules, ordinances, codes, etc.
- 1.5 **Site Visit:** This requirement will have a site visit for which attendance is highly encouraged. Date and time will be provided within the Solicitation. Also, use of cameras is prohibited without prior approval. Please arrive 15-30 minutes prior to start time to allow time for Security check.
- 1.6 **Period of Performance (PoP):** The period of performance shall be for one (1) Base Year of twelve (12) months and two (4) 12-month option years. The period of performance reads as follows:

Base Year
Option Year 1
Option Year 2
Option Year 3
Option Year 4

- 1.7 Quality Control: The contractor shall develop and maintain an effective Quality Control Program (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's Quality Control Program is the means by which he assures himself that his work complies with the requirement of the contract. The Contractor shall provide their QCP along with their bid submission to the Contract Specialist for review. If the Government requires changes to the QCP, the Contractor must provide a revision within five (5) business days.
- 1.8 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s) if applicable.
- 1.9 Recognized Holidays: The Contractor IS NOT required to work on the following recognized holidays:
- | | |
|-----------------------------------|------------------|
| New Year's Day | Labor Day |
| Martin Luther King Jr.'s Birthday | Columbus Day |
| President's Day | Veteran's Day |
| Memorial Day | Juneteenth |
| Thanksgiving Day | Independence Day |
| Christmas Day | |
- 1.10 Hours of Operation: The contractor is responsible for conducting business, between the hours of 07:00 through 16:30 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. At all times, the Contractor shall maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.
- 1.11 Place of Performance: The work to be performed under this contract will be throughout Tobyhanna Army Depot, Tobyhanna, PA 18466.
- 1.12 Type of Contract: The government will award a hybrid contract. Regularly scheduled safety inspections will be a firm fixed price and on call remedial repair work will be time and material.
- 1.13 Security Requirements: Contractor personnel performing work under this contract must have a completed background check prior to start of any work to be performed and must maintain the level of security required for the life of the contract. The Contractor or Subcontractor must maintain unescorted access to the Installation.
- 1.13.01 See the attached pdf, Part 8, titled "Security Operations (SECOPS) Requirements".
- 1.14 Safety Requirements: See the attached pdf, Part 9, titled "SERVICE or EQUIPMENT INSTALLATION CONTRACTOR SAFETY STANDARDS FOR TYAD".
- 1.15 Environmental Requirements: See the attached pdf, Part 10, titled "Standard Specifications for Projects Under the National Environmental Policy Act in Accordance with 32 CFR 651 Proponent ELTY-ISP-N".

Part 2

Definitions & Acronyms

Definitions:

CONTRACTOR: A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

CONTRACTING OFFICER (KO): A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

CONTRACTING OFFICER'S REPRESENTATIVE (COR): An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

DEFECTIVE SERVICE: A service output that does not meet the standard of performance associated with the Performance Work Statement.

DELIVERABLE: Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

KEY PERSONNEL: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

PHYSICAL SECURITY: Actions that prevent the loss or damage of Government property.

QUALITY ASSURANCE: The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

QUALITY CONTROL (QC): All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

QUALITY CONTROL PLAN (QCP): Written set of procedures and activities aimed at delivering products or services that meet quality objectives for a project as stated in contract documents and other procedures, manuals and guidance.

SUBCONTRACTOR: One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

WORK DAY: The number of hours per day the Contractor provides services in accordance with the contract.

WORK WEEK: Monday through Friday, unless specified otherwise.

Acronyms:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

Part 3

Government Furnished Property, Equipment and Services

3.1 Facilities: The Government will provide access to facilities as needed to complete the requirements of the contract.

3.2 Utilities: The Government will provide water and electricity. The Contractor shall instruct employees in utilities conservation practices. The Contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the necessary amount to accomplish cleaning vehicles and equipment.

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Part 4

Contractor Furnished Items, Services and Responsibilities

- 4.1. General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS
- 4.2. Materials: The Contractor shall provide all materials necessary to meet the requirements under this Performance Work Statement. This includes but is not limited to oils, greases, cleaners, paints and any other parts needed to maintain and repair all towers according to the manufacturer's recommendations.
- 4.3. Equipment: The Contractor shall furnish all equipment necessary to meet the requirements under this Performance Work Statement.

Part 5

Specific Tasks

5. Specific Tasks:

5.1. One Time Base Year Repair Clin: These tasks shall be completed within ninety (90) days of award.

5.1.1. LMR Tower (Building 50 Radio Tower)

- 5.1.1.1. Furnish and install RF Radiation warning and/or high voltage broadcast equipment signs
- 5.1.1.2. Apply one coat of white elastomeric to the tower foundation
- 5.1.1.3. Wire brush and cold galvanize the rusting climbing pegs
- 5.1.1.4. Furnish and install a down conductor for the lightning rod
- 5.1.1.5. Mobilization

5.1.2. Building 32 Platform

- 5.1.2.1. Replace the structural bolts as needed
- 5.1.2.2. Furnish and install RF Radiation warning and/or high voltage broadcast equipment signs
- 5.1.2.3. Apply one coat of white elastomeric to the tower foundation
- 5.1.2.4. Furnish and install new grounding for the waveguide/ice bridge.
- 5.1.2.5. Mobilization

5.1.3. Building 31 Platform

- 5.1.3.1. Apply one coat of white elastomeric to the tower foundation
- 5.1.3.2. Mobilization

5.1.4. 100 Ft Tower Track Tower

- 5.1.4.1. Install turnbuckle safeties in a figure 8 formation
- 5.1.4.2. Furnish and install new thimbles as needed
- 5.1.4.3. Furnish and install RF Radiation warning and/or high voltage broadcast equipment signs
- 5.1.4.4. Furnish and install yellow guy wire markers to the bottom guy wire at each anchor
- 5.1.4.5. Apply one coat of white elastomeric to the tower foundation
- 5.1.4.6. Slip the guy wires as needed including replacement of preforms along with shank adjustment
- 5.1.4.7. Mobilization

5.1.5. 330 Ft Tower

- 5.1.5.1. Furnish and install safety wire on shackles at anchors head and/or pull off points
- 5.1.5.2. Furnish and install RF Radiation warning and/or high voltage broadcast equipment signs
- 5.1.5.3. Furnish and install cathodic protection on the anchors
- 5.1.5.4. Wire brush and cold galvanize the rusting turnbuckles
- 5.1.5.5. Furnish and install new stainless steel cotter pins
- 5.1.5.6. Apply one coat of white elastomeric to the tower foundation
- 5.1.5.7. Wire brush and cold galvanize the rusting antenna mounting hardware
- 5.1.5.8. Furnish and install hanger for the coax
- 5.1.5.9. Furnish and install new guy wire grounding
- 5.1.5.10. Furnish and install anchor head grounding
- 5.1.5.11. Furnish and install anchor shaft grounding
- 5.1.5.12. Furnish and install grounding for the perimeter fence
- 5.1.5.13. Remove unused antennas along with unused coax and mounts
- 5.1.5.14. Wire Brush and cold galvanize the lighting conduit as needed

5.2. Regularly Scheduled Yearly Safety Inspections:

5.2.1. The Contractor shall perform annual safety inspections on all towers / structures listed in Section 1.3. The inspection schedule is as follows:

Base Year: Climbing Inspection
Option Year 1: Visual Inspection

Option Year 2: Visual Inspection
Option Year 3: Climbing Inspection
Option Year 4: Visual Inspection

5.2.2. The Contractor shall check in (in person) with the COR on all days they are on site prior to commencement of work. If COR is unavailable, an alternate POC will be made available.

5.2.3. Upon completion of the safety inspections, the contractor shall provide a detailed inspection report within two (2) weeks.

5.2.3.1. The report shall include any critical findings and required repairs that need to be performed under the on-call time and material clause of this contract.

5.3. On Call Repairs (Time & Material):

5.3.1. Repairs to towers / structures (see equipment in sections 1.3) will be done at additional cost to the Government.

5.3.2. All work shall be performed during normal operating hours, 07:00 – 16:30, Monday through Friday. This excludes federal holidays and regular days off (RDO).

5.3.3. The contractor shall respond on site within 72 hours for unscheduled remedial on call repairs.

5.3.4. On Call repairs are as defined in this PWS and as directed by the Contracting Officer Representative (COR). Includes the labor and materials to perform On Call Remedial Repairs to towers / structures listed in Sections 1.3 and other work as directed by the Contracting Officer Representative (COR).

***NOTE: Any effort to be performed under these T & M CLINS must be approved by the COR prior to the initiation of any work.

Part 6

Applicable Publications

6. The Contractor shall abide by all applicable publications, regulations, manuals, local policies and procedures for repairs and installations. The manufacturer's specifications and methods are priority. If conflicts arise, the more stringent shall be required. The following documents shall be adhered to during the life of this contract.

6.1. "Security Operations (SECOPS) Requirements (Updated July 2024)

6.2. "SERVICE or EQUIPMENT INSTALLATION CONTRACTOR SAFETY STANDARDS FOR TYAD"

6.3. "Standard Specifications for Projects Under the National Environmental Policy Act in Accordance with 32 CFR 651 Proponent ELTY-ISP-N"

Part 7

Attachment/Technical Exhibit Listing

7. Attachment/Technical Exhibit List:

7.1. Attachment 1/Technical Exhibit 1 – Performance Requirements Summary

7.2. Attachment 2/Technical Exhibit 2 – Deliverables Schedule
Technical Exhibit 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Performance Threshold	Surveillance Method
The Contractor shall perform yearly safety inspections at Tobyhanna Army Depot for the towers / structures identified in Section 1.3 Reference Section 5.1 for inspection requirements.	All structures / towers shall be inspected yearly.	Zero deviation from the standard.	100% Inspection.
The Contractor shall perform remedial on-call repair services to the towers / structures identified in Section 1.3. Reference Section 5.2 for on call requirements	The Contractor shall respond within 72 hours for unscheduled remedial/on call repairs.	Zero deviation from the standard.	100% Inspection

Technical Exhibit 2

Deliverables Schedule

Deliverable	Frequency	Number of Copies	Medium/Format	Submit To
Invoice with comprehensive data including dates of inspections, inspection reports, critical findings and recommended corrective actions.	At the conclusion of every safety inspection.	One (1) copy due within 14 days of completion of safety inspection.	Email and PDF signed by technician(s) who performed safety inspections.	Email to COR
Invoice with comprehensive data including: dates of repair(s), type(s) of repair(s), repaired equipment serial numbers, and findings.	Within thirty (30) calendar days upon completion of on call repair work.	One (1) copy.	Email AND attachment (pdf) included in Wide Area Work Flow (WAWF)	Email to COR

Part 8

Security Operations (SECOPS) Requirements (Updated July 2024)

All Tobyhanna Army Depot (TYAD) contracts and other acquisition-related documents must ensure privacy and security controls follow this information, and that contractors and service providers protect Privacy Act information in the same way the organization adhering to the Federal Acquisition Regulations (FAR) Privacy Act provisions (Subparts 24.1 and 24.2) and include the specified contract clauses (Parts 52.224-1 and 52.224-2), as appropriate, to ensure that personal information is protected as mandated.

In addition to the changes authorized by the clause of this contract; should Force Protection Condition (FPCON) at the installation change, the Government may require changes in contractor security matters and/or processes.

FPCON impact on work levels.

FPCON Charlie: Applies when a hostile incident occurs within the CDR's area of interest (AOI), or intel is received indicating a hostile act or targeting against DoD elements, PAX, or facilities is likely.

FPCON Delta: Applies when a terrorist attack or hostile act has occurred or is anticipated against specific installations or operating areas.

This contract and its employees are considered mission essential. Therefore, all contractor employees are required to report for duty and remain on duty during declared emergencies and/or elevated FPCON levels unless otherwise directed by the contacting officer via the appropriate COR.

Unscheduled gate closures by the Security Police may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays.

Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee's installation driving privileges.

The contractor's employees shall become familiar with and obey the regulations of the installation, including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times. The contractor shall ensure compliance with all regulations and orders of the installation which may affect performance.

(If Required) The contractor shall provide support during contingencies, exercises, heightened operations, and adverse weather or security closures in the accomplishment of performance requirements. From time to time, the Base Commander may decide to close all or part of a base in response to an unforeseen emergency or similar occurrence. Such emergencies include adverse weather such as snow, or ice, "an act of God," such as tornado or earthquake, or a base disaster such as a gas leak or fire.

Emergency Communications and Services.

If assigned to TYAD for seven-days or longer, contractors will enroll in the ALERT! Mass Warning Notification System (MWNS) at <https://alertservices.csd.disa.mil/>.

Alert! MWNS is NOT optional - it is a Headquarters Department of the Army (HQDA) requirement to be a registered user.

Due to the life-safety implications of the information being relayed and the requirement to provide immediate alerts and warnings, personnel assigned to TYAD must ensure that their personal contact information, including after-duty hours contact information, as appropriate (e.g., personal cellular phone numbers or landline phone numbers), e-mail addresses, home address, etc., are entered into the system and regularly updated or verified every 90 days to remain current and accurate.

- A Common Access Card (CAC) is required to register for ALERT!
- If a CAC has not been deemed necessary for the contractor (see below paragraph: *Common Access Card (CAC)*), COR will send the following information to appropriate contact to manually input personnel data into ALERT!

- Full Name
- Cell Phone
- Is SMS ok for alerts? Yes or No
- Email
- Contractor: For what Cost Center
- Name of COR
- Expected length of contract

In the event of a life-threatening emergency or natural disaster, COR will account for assigned contractors. COR will send personnel accountability report to Emergency Operations Center (EOC).

Base closure announcements will be disseminated via ALERT! MWNS.

Antiterrorism (AT) Level I Training. All contractor employees, to include subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level I awareness training prior to contract report date. This training is required for any additional or new contractor employees, who start after that period. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR/POC within **10 calendar days** after completion of training by all employees and subcontractor personnel. AT level I awareness training is available at the following website: <https://jko.jten.mil> course# JS-US007 for their training. Completion of contractor employee training will be documented on *ELTY form 583*, TYAD On-Post Training Record, or contractor equivalent. As applicable, contractor employees must complete annual AT awareness training as it pertains the length of the contract.

iWATCH Army Training. This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 60 calendar days after contract award. Contractors and all associated sub-contractors will be briefed by the TYAD

Antiterrorism/Force Protection officer. It is recommended this training be conducted as part of an initial entry briefing or unit/organization newcomer's briefings. The COR will provide the necessary point of contact for training registration upon contract award, completion of contractor employee training will be documented on *ELTY form 583*, TYAD On-Post Training Record or contractor equivalent.

Access and General Protection/Security Policy and Procedures. Contractor and all associated sub-contractor employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by TYAD Law Enforcement. Contractor workforce must comply with all personal identity verification requirements as directed by DoD, HQDA, and/or local policy.

Contractor and all associated sub-contractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by the government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

A background check and approval from Tobyhanna Army Depot (TYAD) Law Enforcement is required for all contractor and subcontractor personnel prior to on-site access at TYAD. All persons seeking entrance to TYAD shall submit to and comply with all security standards and requirements in force at the time such persons are seeking entry. All contractors, regardless of resident status or citizenship, will be subject to vehicle search and intense in-processing by TYAD security personnel prior to being granted access to TYAD. This security screening process may be time consuming, and access may be delayed or denied. The contractor shall ensure *ELTY Form 648-C* is completed for all contractor and subcontractor personnel requiring depot access to include warranty services. The TYAD point of contact (POC) will provide ***ELTY Form 648-C, "Request Access to Tobyhanna Army Depot"*** to the contractor/vendor at least **ten days** prior to the expected visit date for completion. The contractor/vendor shall return the completed ***ELTY Form 648-C*** to the TYAD POC in a timely manner so the same may be submitted to Security for processing no later than **seven days** prior to the visit. All the required fields on the form shall be complete and accurate by the contractor/vendor for timely processing. This requirement is inclusive of on-site supervisory or managerial personnel and sub-contractor personnel that the contractor anticipates will be performing work or visiting on-site. This security screening does not relieve the contractor of any responsibilities to conduct thorough pre-employment background checks and drug screening. Contractor workers will not be granted access to the work site until security screening is completed and access is approved. Any contractor personnel on-site who fail screening will not be permitted further access to TYAD.

Submit the completed *ELTY Forms 648-C* form(s) to the COR or POC. Ensure contracts include the provisions that check for the possibility of and prevent undocumented workers for inclusion in contracted work related to Army missions.

The company will ensure that its employees entering Army-controlled installations or facilities have obtained access badges and passes in accordance with facility regulations and that these badges and passes are obtained in advance so as not to delay the accomplishment of contracted services.

Common Access Card (CAC): *[If applicable.]* Before CAC issuance, the contractor employee requires, at a minimum, a favorably adjudicated National Agency Check with Inquiries (NACI) or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if duties involve one of the following: (1) Both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) Remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) Physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled NACI at the Office of Personnel Management. Contractors shall be identified with Government issued identification card (e.g., Common Access Card (CAC) or unit specified identification card). When required, contractor personnel shall comply with local security policies to wear their identification card in a standardized manner, clearly visible attached to the torso of the exterior garment above the belt and below the shoulders except when in use (i.e., inserted in a computer CAC reader) or when in controlled areas requiring other credentials as the primary method of identification. To access any Government base and certain facilities, the contractor shall present required identification card upon demand. Upon exit from Government facilities, the contractor shall conceal their credentials (CAC or other credentials) from plain view. The contractor and Contractor Security Manager/Officer shall coordinate with the COR for Government credential issues.

For contractors that do not require CAC, but require access to a DoD facility or installation: Contractor and all associated subcontractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (Army Directive 2014-05/AR 190-13); applicable installation, facility and area commander installation and facility access and local security policies and procedures (provided by Government representative); or, at OCONUS locations, in accordance with status-of-forces agreements and other theater regulations.

Collection of Badges: The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

1. When no longer needed for contract performance
2. Upon completion of the Contractor employee's employment
3. Upon contract completion or termination

The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements. The Contractor shall insert the substance of this clause, including this paragraph, in all subcontracts when the subcontractor's employees are required to have routine physical access to a federally controlled facility

and/or routine access to a federally controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in of this section, unless otherwise approved in writing by the Contracting Officer. The company will return all issued U.S. Government Common Access Cards, installation badges, and/or access passes to the COR when the contract is completed or when a contractor employee no longer requires access to the installation or facility. Contractor personnel will obtain a vehicle pass for access to the military installation and Common Access Cards (CAC) for computer access, if applicable.

Security Clearances. *[If applicable.]* Performance of work will require access to classified information or equipment IAW the DD Form 254, Contract Security Classification Specification, provided as an attachment. Contractor shall comply with FAR 52.204-2, Security Requirements. This clause involves access to information classified "Confidential," "Secret," or "Top Secret" and requires contractors to comply with— (1) The Security Agreement (DD Form 441), including the National Industrial Security Program Operating Manual (DoD 5220.22-M); (2) any revisions to DOD 5220.22-M, notice of which has been furnished to the contractor. If subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, the contract shall be subject to an equitable adjustment as if the changes were directed under the Changes clause of this contract.

The Contractor agrees to insert terms that conform substantially to the language of this clause but excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access to classified information.

Contractor personnel performing IT sensitive duties are subject to investigative and assignment requirements IAW AR 25-2, AR 380-67, DoD 8570.0 and affiliated regulations. Army regulation available at www.apd.army.mil.

Threat Awareness and Reporting Program (TARP). *[If applicable.]* For all contractors with security clearances, per AR 381-12, TARP contractor employees must receive initial and annual TARP training by a CI Agent or other trainer as specified.

Insider Threat Program. The contractor will establish and maintain an insider threat program to gather, integrate, and report relevant and available information indicative of a potential or actual insider threat, consistent with E.O. 13587 and Presidential Memorandum "National Insider Threat Policy and Minimum Standards for Executive Branch Insider Threat Programs."

COMSEC/IT Security. All communications with DoD organizations are subject to communications security (COMSEC) review. All telephone communications networks are continually subject to intercept by unfriendly intelligence organizations. DoD has authorized the military departments to conduct COMSEC monitoring and recording of telephone calls originating from, or terminating at, DoD organizations. Therefore, the contractor is advised that any time contractor place or receive a call they are subject to COMSEC procedures. The contractor shall ensure wide and frequent dissemination of the above information to all employees dealing with DOD information. The contractor shall abide by all Government regulations concerning the authorized use of the

Government's computer network, including the restriction against using the network to recruit Government personnel or advertise job openings.

National Defense Authorization Act Section 889 Compliance: DoD, GSA, and NASA have issued an interim rule amending the Federal Acquisition Regulation (FAR) to implement section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019 (Pub. L. 115-232). Section 889(a)(1)(B) prohibits executive agencies from entering into, extending, or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, on or after August 13, 2020, unless an exception applies, or a waiver is granted. See solicitation provision 52.204-24 and clause 52.204-25.

Operations Security (OPSEC): OPSEC shall be considered across the entire spectrum of DoD missions, functions, programs, and activities. OPSEC is applicable to all personnel, missions, and supporting activities on a daily basis. For OPSEC to be effective, all Army personnel (Soldiers, Family members, DA civilians, and contractors) must be aware of OPSEC and understand how it compliments traditional security programs. OPSEC principles and tactics protect not just organizations, but also individuals, their families, and other loved ones.

Personnel who knowingly, willfully, or negligently fail to protect critical information from unauthorized disclosure may be subject to administrative, disciplinary, contractual, or criminal action.

OPSEC awareness and execution is crucial to Army Success. The risk of exposure to critical or classified information is mitigated by providing OPSEC training.

Contracts that Require an OPSEC Standing Operating Procedure/Plan.

[If applicable.] The contractor shall develop an OPSEC Standing Operating Procedure (SOP) or OPSEC Plan within 90 calendar days of contract award, to be reviewed and approved by the responsible Government OPSEC officer, per AR 530-1, Operations Security. This SOP/Plan will include the organization's critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. In addition, the contractor shall identify an individual who will be an OPSEC Coordinator. The contractor will ensure this individual becomes OPSEC Level II certified as per AR 530-1.

Operations Security Training. In accordance with AR 530-1, Operations Security, (4-2-a) OPSEC Level I certification training. The target audience for Level I is all personnel (which includes Soldiers, civilians, and contractors). Level I training is composed of both **initial** and **continual** (annual) awareness training and both shall be completed prior to contract report date.

1. **Initial** OPSEC awareness training. All newly assigned personnel **within the first 30 days** of arrival in the organization (this includes accessions and initial entry programs) must receive initial training. It is recommended this training be conducted as part of an initial entry briefing or unit/organization newcomer's briefings. This training is provided by TYADs OPSEC officer and can be conducted via distance learning, providing all necessary objectives are met.

Initial training focuses on TYAD-specific critical information and countermeasures.

Contractors must email TYADs OPSEC Officer to schedule OPSEC Level I Initial training (in person or via MS Teams). Initial training may not be “read and initial”.

2. **Continuous** (annual) OPSEC awareness training. OPSEC awareness training must be continually provided to the workforce, reemphasizing the importance of sound OPSEC practices.

OPSEC Level I Continuous (annual) training is available at the following website:

<https://securityawareness.usalearning.gov/opsec/index.htm>

The contractor shall submit OPSEC Level I Continual (annual) certificates of completion for each affected contractor employee and subcontractor employee, to the COR (before the contract report date) within 10 calendar days after completion of training. Completion of training may be documented on an ELTY 583, TYAD On-Post Training Record or contractor equivalent.

OPSEC Countermeasures. The specific OPSEC countermeasures that follow are intended to eliminate or mitigate vulnerabilities. Complying with established security policies and procedures also supports the overall OPSEC objective. All personnel (Soldiers, civilians, and contractors) at every level are required to protect critical information that could potentially be exploited by adversaries. The following OPSEC countermeasures support the protection of critical information identified in TYADs OPSEC Level I Initial training, TYADs Critical Information List, and they are required to be implemented by everyone in all day-to-day activities.

1. Complete mandatory training, practice OPSEC, and implement TYAD OPSEC countermeasures to protect critical information (CI) and other sensitive unclassified information in the execution of military operations performed or supported by the contractor in support of the mission. Protection of CI will include the adherence to and execution of countermeasures which the contractor initiates or as provided by TYAD, for CI on or related to the SOW/PWS.

2. Contractor personnel shall not discuss government operations in public or over unprotected or unencrypted communications. Official business and controlled unclassified information (CUI) may only be transmitted as directed in the SOW/PWS. CUI must be marked and protected according to DoD and TYAD regulations. Do not take CUI off the installation.

3. Because observation of events, operations, physical changes, etc. may reveal National Security information, specific restrictions are needed to preclude unintentional release of this information to unauthorized parties. (Unauthorized disclosure and transfer of National Security Information is punishable under 18 USC § 793.) Therefore, contractor personnel shall **not** disclose to unauthorized third parties, post to company websites, unofficial sites, publications, newsletters, or other media (including Social Networking sites) any images, data or information, or observed events that reveal critical/sensitive government information about operations, personnel, equipment, including, but not limited to: tactics, techniques and procedures, production or work schedules, any visible or concealed modifications, upgrades, additions to vessels,

aircraft, or weapons or equipment; increases, change, or decreases in work/deployment frequency or government personnel, vehicle, vessel or aircraft movements; specialized equipment orders, deliveries, shipments, etc.,

a. A documented OPSEC reviews will be conducted of all information prior to being released to the public regardless of format. OPSEC Reviews must be completed and documented by an OPSEC Level II certified individual.

b. When in doubt, company press releases related to this contract should be coordinated through the Contracting Officer Representative (COR) or Technical Point of Contact, as applicable.

4. Unauthorized disclosures and attempts to solicit classified or critical information by unauthorized third parties or others not affiliated with this contract shall be reported to the TYADs Security Operations Branch, TYADs Law Enforcement Branch, contract point of contact, and your company Facility Security Officer and/or the Defense Security Service. Non-Disclosure requirements remain in effect during the duration of this contract and indefinitely thereafter.

5. Government issued badges, identification shall be removed and/or concealed from plain sight when off station and shall not be left in vehicles or unprotected. Badges and passes may not be duplicated or copied or loaned to others. Lost or stolen identification badges, vehicle passes etc. will be immediately reported to the installation Security Office.

6. It is strongly recommended the contractor mark and protect related internal production schedules, deliverables, inventories, shortages, and identified vulnerabilities related to production of government material. Internal company markings e.g., Business Sensitive, etc., are appropriate for identifying the aforementioned as sensitive information. Specific Government-provided information, drawings etc., will be protected in accordance with guidance in applicable paragraphs of the SOW.

7. All government information must be properly destroyed at contract termination or returned to the government at the government's discretion.

Information Security (INFOSEC)

Contractor personnel must comply with local security requirements for entry and exit control for personnel and property at the Government leased facility or any Government facility where work is being performed.

Contractor employees will be required to comply with all Government security regulations and requirements. Initial and periodic security training and briefings will be required. Failure to comply with security requirements can cause for removal and the Contractor will not be permitted to provide service on this contract.

The Contractor shall not divulge any information about DoD files, data processing activities or functions, user identifications, passwords, or any other knowledge that may be gained, to anyone who is not authorized to have access to such information. The Contractor shall observe and comply with the security provisions in effect at the Government leased facility or any other Government facilities where work is being performed. Identification shall be worn and displayed as required.

Safeguarding Controlled Unclassified Information (CUI)

CUI is Government-created or owned UNCLASSIFIED information that allows for or requires safeguarding and dissemination controls in accordance with laws, regulations, or Government-wide policies. It is sensitive or critical information that does not meet the criteria for classification but must still be protected. CUI policy provides a uniform marking system across the Federal Government that replaces a variety of agency-specific marking, such as FOUO, LES, SBU, etc. CUI markings alert recipients that special handling may be required to comply with law, regulation, or Government-wide policy. The DoD CUI Registry will give you information on every category to include a description of the category, required markings, authorities and DoD policies, and examples. **Not every category or authority listed in the Registry will be applicable to DoD.** More specific information about CUI can be found on the DoD CUI Program website: <https://www.dodcui.mil/Home/Training/>

The contractor (and/or any subcontractor) must comply with Executive Order 13556, Controlled Unclassified Information, (implemented at 32 CFR, part 2002) when handling CUI. 32 CFR 2002.4(aa) as implemented the term “handling” refers to “...any use of CUI, including but not limited to marking, safeguarding, transporting, disseminating, re-using, and disposing of the information.” 81 Fed. Reg. 63323. All sensitive information that has been identified as CUI by a regulation or statute, handled by this solicitation/contract, shall be:

- a. Marked appropriately;
- b. Disclosed to authorized personnel on a “Need-To-Know” basis;
- c. Protected in accordance with NIST SP 800-53, Rev. 4 Security and Privacy controls for Federal Information Systems and Organizations applicable baseline if handled by a Contractor system operated on behalf of the agency, or NIST SP 800-171, Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations if handled by internal Contractor system; and
- d. Returned to TYAD control, destroyed when no longer needed, or held until otherwise directed. Destruction of information and/or data shall be accomplished in accordance with NIST SP 800-88, Guidelines for Media Sanitization.

Safeguarding Sensitive Information: For security purposes, information is or may be sensitive because it requires security to protect its confidentiality, integrity, and/or availability. The contractor (and/or any subcontractor) shall protect all government information that is or may be sensitive in accordance with FISMA by securing it with a FIPS 140-2 validated solution.

Confidentiality, Integrity, Availability, and Nondisclosure of Information: Any information provided to the contractor (and/or any subcontractor) by TYAD or collected by the contractor on behalf of TYAD shall be used only for the purpose of carrying out the provisions of this contract and shall not be disclosed or made known in any manner to any persons except as may be necessary in the performance of the contract. The contractor assumes responsibility for protection of the confidentiality, integrity, and availability of Government records and shall ensure that all work performed by its employees and subcontractors shall be under the supervision of the contractor. Each

contractor employee or any of its subcontractors at any level to whom any TYAD records may be made available or disclosed shall be notified in writing by the contractor that information disclosed to such employee or subcontractor can be used only for that purpose and to the extent authorized herein. The confidentiality, integrity, and availability of such information shall be protected in accordance with TYAD policies and instructions. Unauthorized disclosure of information will be subject to the TYAD sanction policies and/or governed by the following laws and regulations:

- 18 U.S.C. 641 (Criminal Code: Public Money, Property or Records);
- 18 U.S.C. 1905 (Criminal Code: Disclosure of Confidential Information); and
- 44 U.S.C. Chapter 35, Subchapter I (Paperwork Reduction Act).
- 18 U.S.C. 1030 The Computer Fraud and Abuse Act (CFAA)
- 44 U.S.C. 3301 Definition of Records

Government Access for Security Assessment: In addition to the Inspection Clause in the contract, the contractor (and/or any subcontractor) shall afford the Government access to the contractor's facilities, installations, operations, documentation, information systems, and personnel used in performance of this contract to the extent required to carry out a program of security assessment (to include vulnerability testing), investigation, and audit to safeguard Security and Privacy Requirements for Information Technology Procurements against threats and hazards to the confidentiality, integrity, and availability of federal data or to the protection of information systems operated on behalf of TYAD, including but are not limited to:

a. At any tier handling or accessing information, consent to and allow the Government, or an independent third party working at the Government's direction, without notice at any time during a weekday during regular business hours contractor local time, to access contractor and subcontractor installations, facilities, infrastructure, data centers, equipment (including but not limited to all servers, computing devices, and portable media), operations, documentation (whether in electronic, paper, or other forms), databases, and personnel which are used in performance of the contract. The purpose of the access is to facilitate performance inspections and reviews, security and compliance audits, and law enforcement investigations. For security audits, the audit may include but not be limited to such items as buffer overflows, open ports, unnecessary services, lack of user input filtering, cross site scripting vulnerabilities, Structured Query Language (SQL) injection vulnerabilities, and any other known vulnerabilities.

b. At any tier handling or accessing protected information, fully cooperate with all audits, inspections, investigations, forensic analysis, or other reviews or requirements needed to carry out requirements presented in applicable law or policy. Beyond providing access, full cooperation also includes, but is not limited to, disclosure to investigators of information sufficient to identify the nature and extent of any criminal or fraudulent activity and the individuals responsible for that activity. It includes timely and complete production of requested data, metadata, information, and records relevant to any inspection, audit, investigation, or review, and making employees of the contractor available for interview by inspectors, auditors, and investigators upon request. Full

cooperation also includes allowing the Government to make reproductions or copies of information and equipment, including, if necessary, collecting a machine or system image capture.

c. Cooperate with inspections, audits, investigations, and reviews.

Physical Security: The Contractor shall be responsible for safeguarding all government equipment, information and property provided for Contractor use. At the close of each work period, government facilities, equipment and materials shall be secured.

Key Control. *[If applicable.]* The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. **NOTE:** All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the KO. In the event keys, other than master keys, are lost and/or duplicated, the Contractor shall, upon direction of the KO, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the locks or locks shall be deducted from the monthly payment due to the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due to the Contractor.

The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas or personnel authorized entrance by the KO.

Lock Combination. *[If applicable.]* The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

Part 9

SERVICE or EQUIPMENT INSTALLATION CONTRACTOR SAFETY STANDARDS FOR TYAD

Below are some "installation specific" safety standards which contractors are required to adhere to while performing any work on Tobyhanna Army Depot. It is the contractor's responsibility to always incorporate these particular requirements into their daily operations while under contract and to institute these specifics into their overall site safety controls. These do not substitute or deflect in any way the requirement to institute and adhere to all OSHA 29 CFR 1910 & 1926 and USACE EM385-1 safety standards, as well as all applicable contractual Federal Acquisition Regulations while performing the work under this contract on Tobyhanna Army Depot.

It is the responsibility of the contractor to enforce the below requirements as well as all current revisions of the above referenced standards. Failure to enforce safety requirements on the depot can result in immediate stop works, safety stand down orders and even complete termination of the contract.

Important Phone Numbers:

Fire or Emergency: 911

Fire Department – (Non-Emergency): 570-615-7300

Security: 570-615-7550

Safety Office - 570-615-7027

S1.0 THE CONTRACTOR IS SOLELY RESPONSIBLE AND LIABLE FOR JOB- SITE SAFETY

1. Review of the project plans and other documents by any government appointed official does not constitute an acceptance of Federal responsibility or liability for the adequacy of the safety measures identified for the job or for the Contractor's compliance with all applicable safety rules and regulations.
2. The Contractor remains solely responsible and liable for job-site safety at all times during the term of the contract. No outside personnel (other than ET, COR, TYAD Safety, or other government appointed contract personnel) are allowed onto the job site at any time during contract without prior permissions and/or escort by the ET, COR or KO.
3. Tobyhanna Army depot has restrictions on the use of fossil fuels in all buildings. When it is determined that electric or other alternatively fueled vehicles are insufficient or unavailable for movement of material within the buildings on the installation, fossil-fueled vehicles can be used only when all alternatives of accepted electric material movement equipment have been considered, and the last option is use of a fossil fuel vehicle or project failure. This includes any situations where

safety of employees and equipment may be jeopardized. Convenience will never be an acceptable justification to utilize fossil-fueled vehicles. The Government Designated Representative (GDR) will notify the appropriate supervisor(s) or leader(s) in the area where the need to utilize a fossil fuel vehicle is required. The supervisor / leader will take the necessary steps to notify the employees in the work area of the option to leave the area during the material movement process. The GDR and Contractor will also document all actions the Contractor took to utilize electric or other alternatively fueled vehicles. The documentation will specifically state why electric or alternatively fueled vehicles are insufficient and all mitigation efforts used to minimize the effects of fossil-fueled vehicles to include information as to any appropriate scrubbers that can be utilized along with any ventilation or exhaust systems that can be used to externally vented to the outside of the facility. The documentation must be submitted to the TYAD Safety office for approval prior to any equipment being used. A final copy of the Approved documentation will be provided to the TYAD Safety Division.

4. All direct construction supervision, including subcontractors, must as a minimum, complete an OSHA 30-hour safety course for construction. These certificates must be submitted as part of the site safety plan BEFORE construction activities start.
5. **RED CARD PROGRAM** - Tobyhanna Army Depot utilizes a program to allow employees to stop an action which is considered unsafe. Employees carry small red cards that can be thrown down when employee sees any action they consider unsafe. Work ceases until TYAD management can decide if it is safe or not. Contractors are required to comply with this program. If a TYAD employee presents the red card to the contractor, the contractor must stop working until the COR and Safety Office can determine if there is a safety hazard or not.
6. All contractor personnel, to include subcontractors, vendors, suppliers, or visitors, when performing any type of work activity, or gaining access through an occupied area or shop - must have all applicable PPE that is required for the area to include, but not limited to, hardhats, safety glasses, hearing protection, and respirator protection. Notify both COR & Area Supervision, for access approval and prior to any work activities being performed.

S2.0 CODE COMPLIANCE

As noted in Tobyhanna Army Depot Safety Regulation 385-1 - TYAD follows all requirements and is certified as an ISO 45001 facility. Accordingly, the contractor shall comply with and maintain these high safety standards and provide full compliance with all applicable safety regulations and standards. The Contractor shall maintain, monitor, and enforce employee compliance with all applicable rules, regulations, and codes. Tobyhanna Army Depot requires full contractor compliance with all safety regulations and standards. The Contractor is responsible for maintaining, monitoring, and enforcing all rules, regulations, and codes, by ALL personnel working for the contractor including all subcontractors. These codes include:

Title 29 Code of Federal Regulations-1910 (OSHA General Industry Standards)

Title 29 Code of Federal Regulations-1926 (Construction Industry Standards)

National Fire Protection Association Codes

Uniform Facilities Code

Unified Facilities Guide Specifications (UFGS)

USACE EM385-1-1

All other codes as required to maintain safety standards.

S3.0 JOB HAZARD ANALYSIS (JHA) / ACTIVITY HAZARD ANALYSIS (AHA)

Prior to the start of work, the contractor shall prepare a JHA / AHA for each phase of work that will be done under the contract. This will be completed in accordance with all applicable OSHA safety requirements. A phase is any operations involving a certain type of work. Examples include demolition, excavation, masonry work, concrete pouring, roofing, and electrical wiring. Work done by each subcontractor is also a phase. The JHA / AHA will:

1. List the activity being performed and identify the sequence of work steps.
2. List the hazards associated with each step, and the procedures and training required to eliminate or reduce the risk to an acceptable level.

S4.0 SITE SPECIFIC SAFETY & ACCIDENT PREVENTION PLANS

Contractors will submit a written Site-Specific Safety / Contractor Accident Prevention Plan prior to beginning activities. The plan must follow the guidelines in OSHA 29 CFR 1926 or 1910 as applicable.

1. Who will implement the plan, including who is responsible for safety and accident prevention?
2. A means for coordinating and controlling subcontractors and suppliers.
3. Safety training.
4. Who will investigate accidents?
5. Emergency response.

6. Job site cleanup and safe access.
7. Public safety requirements such as signs and barricades.

S5.0 FALL PROTECTION

1. Personnel performing works at a height of six feet or more from any lower level shall comply with OSHA 29 CFR 1926.500 through 1926.503 safety standards for any type of new installations. OSHA 29 CFR 1910-28 shall apply to any type of servicing on previously installed equipment.
2. There are currently no certified anchorage points or permanent guardrail systems on any TYAD roof. Most roofs of the depot are more than 20 feet high.
3. Contractors and their employees must be protected from falling off the edge of the roof, regardless of how briefly the employees are at the edge of the roof.

S6.0 ELECTRICAL SAFETY

Follow the current Tobyhanna Army Depot standard. This standard is based on NFPA 70E.

Copies of the TYAD Electrical standard may be obtained by request from the ET, COR or KO on the project or service contract.

S7.0 DEPOT REQUIRED PERMITS / APPROVALS

Permits are required for:

1. **Excavation**: Contractors must utilize the PA 1 Call system and also coordinate with contracting officer representative (COR) for a TYAD dig permit for any excavations prior to any groundbreaking including digging, drilling and stake driving.
2. **Trenching**: Contractors will adhere to OSHA requirements and receive approval from TYAD Safety office before any trenching deeper than 5 feet is performed. Notifications of such activities will be provided to the COR along with required plans, requests and permits prior to any trenching works being performed. Contractor is responsible for field verifying all utilities and underground entities. Excavation or trench greater than 18 inches in depth that remains open greater than (1) day OR left unattended for any period of time shall have a safety orange construction fence installed around the perimeter of the opening. Caution tape or cones for this purpose is unacceptable.
3. **Confined Space**: All confined space works on TYAD are to be considered as permit required entries, (unless reclassified by the TYAD Safety office,) and Contractor must first request and be provided with an approved "signed" permit from TYAD Safety Office prior to any confined space entry. Contractor will refer to all OSHA

requirements and must have a confined space plan and all appropriate safety equipment. Contractor is to request approval from TYAD Safety office through COR prior to entry.

4. **Burning / fire**: Hot work permits must be obtained daily from the Fire Department.
5. **Cranes**: For use of cranes and all WHE and LHE at TYAD see S.10.13
6. **Army Radiation Permits**: Non-Army agencies (including other military Services, vendors, and civilian contractors) require an Army Radiation Permit (ARP) to use, store, or possess ionizing radiation sources on TYAD (see 32 CFR 655). Non-Army applicants will apply by letter with supporting documentation to the Depot Commander. The letter should be submitted so that the Depot Commander receives the application at least 30 days before the requested start date of the permit. The ARP application will specify start and stop dates for the ARP and describe the intended use of the radioactive material.

For sealed sources of radiation, i.e. Moisture Soil Density Gauges, the application must include a valid Nuclear Regulatory Commission (NRC) Radioactive Materials License that allows the applicant to use the source as specified in the ARP application, current leak test certificates, operator training records and calibration certificates for any equipment that may be utilized at TYAD.

For machine produced ionizing radiation sources, i.e. X-ray Equipment, the application must include the appropriate state authorization that allows the applicant to use the source as specified in the ARP application along with operator training records and calibration certificates for any equipment that may be utilized at TYAD.

ARPs will not be issued for more than 12 months at a time.

S8.0 CONFINED SPACES

1. All Confined Spaces at TYAD are considered as Permit-Required Confined Spaces unless reclassified by TYAD Safety office after a thorough review of the area and the work being planned.
2. Contractors must first notify the COR and receive TYAD Safety office approvals prior to gaining access or opening any confined space area.
3. Contractors must fully comply with all OSHA regulations for Confined Space Operations, including on-site use and availability of a Confined Space Entry Permit / Checklists, along with prior approvals of their Accident Prevention Plan and associated Activity Hazard Analysis (AHAs) for the work to be performed.
4. The contractor and/or the COR will then notify the TYAD Safety office and TYAD Fire and Emergency Services of the Confined Space Entry timelines and schedules.

5 Upon completion, the contractor will notify the TYAD Safety Office and discuss whether any new hazards were added to the Confined Space and will submit the completed Confined Space Entry Permit / Checklist for record.

S9.0 LOCKOUT/TAGOUT PROCEDURE

1. The Contractor shall perform this work in accordance with 29 CFR § 910.147-The Control of Hazardous Energy requirements.
2. The Contractor shall notify the COR that a lockout/tag out system is going to be used.
3. The contractor is to request the COR to notify them if TYAD is using any lockouts / tag outs in the construction area.
4. The Contractor shall locate and identify all isolating devices.
5. The Contractor shall shut down the equipment normally.
6. The Contractor shall isolate all energy using appropriate methodology.
7. After all work is complete, the Contractor shall remove the energy isolating device and restore the equipment to service.
8. The Contractor shall notify the COR that energy is again restored.

S10.0 PROTECTION TO THE DRINKING WATER SYSTEM

1. The contractor will not perform any work on the depot potable water system until prior approval is obtained from the Environmental Branch and the certified operator through the Directorate of Installation Services COR.

S11.0 PROTECTION OF PERSONNEL

At no time is any depot employee to be put at risk to illness or injury. No construction actions are exempt from this requirement.

1. Where pedestrian and driver safety is endangered, use appropriate traffic barricades. Use anchor barricades to prevent displacement by wind. Institute PA DOT regulations and OSHA requirements. Notify the COR prior to beginning such work.
2. Where demolition is required, a Demolition Plan describing the steps and individual Definable Features of Works (DFOWs) as well as safety protocols, controls and oversight is required to be submitted to the COR for review prior to works being performed. Continuously evaluate the condition of the structure being demolished

and take action to protect personnel working around the project site. No structural element will be left standing without sufficient support to prevent collapse.

3. Contractor shall provide personal protective equipment (PPE) and provide training for use, for all visitors requiring entry into the regulated area.
4. Subcontractors, vendors, and delivery personnel are the responsibility of the prime contract and must follow the same regulations the prime contractor does.

S12.0 FIRE AND EMERGENCY SERVICES

Hot Work Permits will be issued by Fire Department upon request. All requests must be made at least thirty (30) minutes prior to the expected start time by contracting the fire department.

1. Contractors are required to have fully charged and operable contractor provided fire extinguisher, in quantities and properly spaced per OSHA requirements that are appropriate for the type of possible fire. Fire extinguisher shall be immediately available for inspection by the fire department upon an inspection of the worksite and shall remain at the work site at all times. At a minimum, 10 pound class 4A, 60B or C multi-purpose dry chemical fire extinguisher or equivalent shall be provided.
2. A fire watch must be in place during the hot work and for 30 minutes after the HWP operation. Upon completion of the thirty (30) minute, post hot work fire watch, the contractor shall contact the fire department to report the work is complete.
3. Use of a plasma torch will require special approval by the fire department.
4. Any fire, even one that is extinguished, must be reported to the fire department.
5. Ambulance services are provided at a cost to contractors. The contracted ambulance service provider will transport to the nearest hospital. Advanced Life Support, helicopter transport, etc. is all at the contractor's expense.
6. The fire department will respond to all fire, ambulance, hazmat and confined space incidents.

S13.0 IF AN INCIDENT HAPPENS

1. **Any serious injury or medical emergency:**
 - Immediately call emergency responders
 - Dial 911 and give accurate location and nature of emergency. Make sure to tell the operator that you are calling from Tobyhanna Army Depot.
 - Send someone to the nearest exit to assist responders.
 - Treat victims to the best of your ability.

- Notify COR / call work order desk at 570-615-7805 if there is any blood or body fluids that must be cleaned up.

2. In the event of the smell of natural gas:

- Call dial 911 and give accurate location and nature of emergency. Make sure to tell the operator that you are calling from Tobyhanna Army Depot.
- Have all personnel evacuate the area if the smell is significant.
- Upon arrival of fire personnel, provide information as to specific equipment and exact location of potential leak.

3. In the case of a fire:

- If the fire is small, use a fire extinguisher and call 911.
- Otherwise, dial 911 and pull the fire alarm.
- Evacuate the building.

4. Accident/Injury Reports and OSHA 301 Reports:

The contractor shall report to the COR and KO, - Immediately but no later than eight (8) hours, any Fatality, In-patient hospitalization, Amputation, Eye loss or Property damage over \$600,000. Similarly, contractor shall report to the COR and KO, – Immediately, but no later than twenty-four (24) hours, all other accidents or near misses.

Notifications shall be followed up within five (5) working days of all incidents (reportable or not) with an OSHA 301 report including all available facts relating to each instance of personal injuries and of loss / damage to Government property.

For any accident that results in illness or injury that requires more than first aid treatment, TYAD Safety & Health Office has the option to have the contractor immediately secure the accident area until released by the accident investigation authority as designated by the Commander. If the Government elects to conduct an investigation of the accident, the contractor shall cooperate fully and assist authorities until the investigation is complete. If requested after the investigation is completed, the contractor shall provide a Corrective Action Plan related to the incident to the COR & KO.

COR to provide copies of all OSHA 301 incident reports and any Correction Action Plans to the TYAD Safety office when available.

S14.0 CRANE LIFT OPERATIONS AT TOBYHANNA ARMY DEPOT

A Lift Plan for Crane Operations will be submitted to the ET/COR for approval by the TYAD Safety Office at least 14 days prior to a lift operation. It will conform to all applicable OSHA regulations and requirements and shall include:

1. A description of the operation to be performed, specific personnel assignments (Lift Director, Safety Coordinator, Operator, rigger, etc.) and signaling and any other details pertaining to activities during the lift.

2. A drawn Site Plan with specifications including work zone, support equipment locations, evacuation area, traffic control, electrical power line clearances (if applicable), lift path, surface conditions at crane location, etc.
3. Training/Certifications (scans) for crane operator and other lift-team members included in the lift operation.
4. Equipment nomenclature and a certificate of comprehensive annual inspection records, including any deficiencies and corrective action.
5. Load chart for crane, with target capacities specific to the crane/boom configuration and lift details clearly marked.
6. Lift calculations, including rigging components and configuration.
7. Weather conditions are always part of the ongoing safety assessment and may result in rescheduling of the lift.
8. Only approved operators are allowed to operate or move the crane for any reason.

A Production Lift Plan pertains to repetitive lifts within a work project and may be outlined with one lift plan depicting the nomenclature and general capacities of the equipment to be utilized. Besides the eight items above, the plan will also include how often the crane will be used and how traffic and personnel safety will be handled. A separate traffic plan will be required for vetting and approval prior to any lifts taking place.

S15.0 APPLICATION OF ANY ODOR PRODUCING MATERIAL

1. Any application of any paint, epoxy, adhesive or anything else that produces an offensive odor must be coordinated with the COR or POC before starting. This is particularly true of the construction work in a building occupied by Tobyhanna employees.
2. It is highly recommended that this type of work be planned for off hours, weekends, or holidays to avoid shutdowns of operations due to these offensive odors. Odors during curing times for products shall also be considered.

S16.0 CONTROL OF RESPIRABLE CRYSTALLINE SILICA

1. Contractors are required to follow the OSHA standard 29 CFR 1926.1153 which requires employers to limit worker exposures to respirable crystalline silica and to take steps to protect their workers and TYAD personnel.

2. Contractors shall establish and implement a written exposure control plan that identifies tasks that involve exposure and methods used to protect workers, including procedures to restrict access to work areas where high exposures may occur.
3. Restrict housekeeping practices that expose workers to silica by utilizing engineering controls such as local exhaust ventilation, using “wet spray” methods when cutting or drilling and providing proper respiratory protection and other PPE as applicable.

S17.0 OPERATION & MAINTENANCE MANUALS

1. The Contractor shall provide to the COR a copy of all Operation and Maintenance (O&M) Manuals and Parts Manuals for any equipment provided.
2. The O&M Manuals shall contain a complete set of mechanical drawings and diagrams; a complete set of electrical drawings and diagrams including electrical schematics; logic circuitry descriptions; spare parts list; operator and maintenance instructions for operating, testing, and maintaining all system components.
3. The O&M Manuals shall contain complete detailed instructions and schedules for system PM.
4. The O&M Manuals shall contain a detailed description of the lock-out/tag-out procedures needed to bring the system and individual components to a zero-energy state for maintenance and servicing.
5. The O&M data must be consistent with the manufacturer's standard brochures, schematics, printed instructions, general operating procedures, and safety precautions.

IN ANY CONFLICT BETWEEN STANDARDS, THE STRICTER OF THE TWO SHALL APPLY. IF UNSURE CONTACT THE COR / ET VIA PROPER RFI PROTOCOLS FOR VERIFICATION THROUGH THE TYAD SAFETY OFFICE.

Standard Specifications for Projects Under the National Environmental Policy Act in Accordance with 32 CFR 651 Proponent ELTY-ISP-N

*****Spill Response Procedures 1-2-3*****

1. Stop work
2. Call 911
3. Evacuate Area

*******Damaged Asbestos?*******

Call Environmental Branch (EB) at 570-615-7098

*******Environmental Questions?*******

Call EB 570-615-7098

1. Air Pollution Control

The contractor must control fugitive emissions, including dust, during the course of their contract. The contractor must obtain approval from the Environmental Branch (EB) prior to exhausting equipment to the outside. The contractor must not allow any pollutant or particulate matter to be released to the atmosphere at levels that are visible from outside of Tobyhanna Army Depot (TYAD). The contractor must not perform work that will release pollutants or particulate matter to the atmosphere when the wind speed exceeds ten miles per hour and will result in adverse effects to the surrounding areas. TYAD will monitor the wind speed; it is the contractor's responsibility to obtain wind speed information through the Contracting Officer Representative (COR).

2. Asbestos

The contractor must ensure that all materials used in the performance of this contract are asbestos-free.

Unless specified in the contract, the contractor must not disturb any existing Asbestos-Containing Material (ACM) in the performance of this contract. If ACM, or suspect ACM might be disturbed in performance of this contract, the contractor must avoid encountering the material and immediately notify the COR and the Contract Administrator in writing. The COR must coordinate with EB to have the material tested to determine if there is ACM. If the material is determined to be ACM and the contractor cannot avoid disturbing the material, the COR will notify the Contracting Officer. The Contracting Officer will direct a change pursuant to the contract clauses entitled "Changes" and "Differing Site Conditions." If ACM, or suspect ACM has been disturbed, the contractor must immediately notify the COR and call the EB. The contractor will shut down and not move any equipment or supplies near the damaged ACM. The contractor will evacuate all non-contaminated contractor personnel from the immediate vicinity. Any contractor personnel thought to be contaminated with asbestos must remain in the area until the EB responds. If the damaged material is determined to be ACM and there is potential for further damage, the Contracting Officer will direct a change pursuant to the clauses of the contract clauses entitled "Changes" and "Differing Site Conditions."

Asbestos abatement required under the contract as originally awarded must be in accordance with United Facilities Guide Specification 02 83 14 00 10 and as otherwise required in the contract. Asbestos

abatement not required under the contract as originally awarded, can be incorporated into the existing contract via contract modification, or by the Government taking responsibility for the asbestos abatement. The method of acquiring the abatement is at the discretion of the Government. The contractor must have an asbestos abatement work plan that has been approved by EB prior to beginning any asbestos abatement work.

3. Backflow

The contractor shall have a backflow prevention device installed on all contractor equipment that is connected to Tobyhanna Army Depot's (TYAD) water distribution system. The contractor shall have a water meter installed to monitor water consumption during all phases of the contract. Water use will be reported monthly to the COR.

4. Burning

The contractor must not burn refuse and debris anywhere on TYAD.

5. Buy Recycled-Content Materials

The Contractor must comply with [Resource Conservation and Recovery Act \(RCRA\) Section 6002](#) (42 U.S.C. 6962, Federal Procurement) in the acquisition of materials with recycled content. Specific designated items in this contract for which recycled content standards have been established have been set forth in the specification (e.g., insulation, roofing materials, carpet, carpet pad, paint, floor tiles, shower and restroom dividers). Recovered Material Certification: As required by the RCRA, the contractor must certify that the percentage of recovered materials to be used in the performance of the contract will be at least the amount required by the applicable contract specifications (see Federal Acquisition Regulation (FAR) Provision 52.223-4, Recovered Material Certification). Prior to application for final payment, the contractor must provide a report in accordance with FAR Clause 52.223-9, Estimate of Percentage of Recovered Material Content for Environmental Protection Agency (EPA) Designated Items, to the Contracting Office. Compliance with this program does not relieve the contractor from meeting all other specification requirements.

6. Cultural Resources

The contractor must not adversely affect any property listed on the National Register of Historic Places (NRHP) or properties eligible for inclusion on the NRHP without consultation and approval from the EB through the COR. If there is a discovery of any historic properties, including archeological sites and graveyards, work will cease immediately until requirements of National Historic Preservation Act, as amended, have been met. All archaeological artifacts found at TYAD or TYAD-controlled properties are U. S. Government property until a determination is made otherwise.

7. Demolition Notification

If a project involves the demolition of any load-bearing structural members, whether or not asbestos is present, 25 days prior to the demolition, the Commonwealth of Pennsylvania [Asbestos Abatement and Demolition/Renovation Notification Form 2700-FM-BAQ0021](#) must be submitted to EB as specified in the [Unified Facilities Guide Specification 02 82 13.00 10](#).

8. Drinking Water

The contractor must not perform any work on the TYAD potable water system prior to obtaining approval from the EB and the Installation Planning and Maintenance Division certified operator through the COR. If a permit is required due to construction or proposed chemical feed changes, it will be the responsibility of the contractor to obtain all permits associated with the project. Permit applications will first be reviewed and approved by the Environmental Branch before being submitted to regulatory authorities. Any piping or additions added to the TYAD water system must be disinfected following

["American Water Works Association circular C651-14 "Disinfecting Water Mains."](#)

Construction will be kept outside of drinking water wellhead protection zones when feasible. All new buildings and remodeled buildings will be equipped with a water meter that can easily be read from the exterior of the building.

9. Endangered Species

The contractor is responsible for meeting requirements of the [Endangered Species Act of 1973](#). The contractor must not disturb any endangered species, their habitat or offspring during the implementation of this contract.

10. Emergency/Spills

All emergencies and spills must be reported to the TYAD Fire Department by calling 911 from a TYAD phone or (570) 615-7300. If a 911 call is placed on a cell phone, the call will go to the Monroe County Emergency Office. Notify the Monroe County Emergency Office that you are at TYAD and the call will be forwarded to TYADs Fire Department. The contractor must ensure all personnel working on site are trained in the proper procedure according to [29 CFR 1910.120](#) (if applicable) to initiate a spill response to handle the hazardous substances they are working with. The contractor will take the necessary actions to prevent and contain spills of hazardous materials.

11. Energy Efficiency

[The Energy Policy Act of 2005](#) section 109 and the Energy Independence and Security Act of 2007 require all new construction at federal facilities to be 30% better than ASHRAE 90.1. Energy Policy Act of 2005 section 104 and the [Energy Independence and Security Act of 2007](#) require all new equipment to be Energy Star qualified when available. This is applicable to heating, ventilation and air conditioning equipment, plumbing, building materials, lighting, commercial food service equipment and appliances.

12. Environmental Automation and Control Systems

The contractor will not alter, modify, remove or tamper with any environmental automation or control system unless previous arrangement have been made with EB. This includes sensors, programmable logic controllers, equipment housing, power supplies, meters or other hardware/sensor technology.

13. Erosion and Sedimentation Control

The contractor shall protect streams, lakes and wetlands from sediment discharges caused by the contractor's activities. The contractor shall also provide (where applicable) an erosion and sedimentation control plan in compliance with state and local laws and regulations, to the COR for approval prior to executing any soil-disturbing activities. The contractor must submit a National Pollutant Discharge Elimination System Permit to the Pennsylvania Department of Environmental Protection (PADEP) prior to any construction activity that encompasses more than one acre. All permits must be reviewed and approved by the EB prior to being sent to any regulatory authority. The contractor shall not disturb any wetlands. Contractor will remove all silt fencing and other temporary control measures once the site is stabilized. Contractor will remove all spoils from TYAD unless a previously approved disposal site has been established. The contract COR will be responsible for management and control of the spoils disposal site.

14. Fluorescent and Mercury-Bearing Lamps

The contractor is to collect, containerize, manage and recycle fluorescent and mercury-bearing lamps in accordance with [40 CFR 273](#), Standards for Universal Waste Management. A copy of the manifest/Bill of Lading must be given to the EB through the COR five days in advance of shipment by the contractor so

that it can be reviewed for accuracy and completeness. The contractor must install low mercury bulbs when available.

15. Hazardous Materials Stored and Labeled

The contractor must ensure all hazardous materials (HM) at the work site are properly stored and labeled. The contractor must not leave any HM behind at the completion of the job for any reason. HM must not be stored outside without adequate secondary containment and shelter.

16. Hazardous Waste

The contractor must ensure that all hazardous wastes (HW) at the work site are properly stored and labeled in a pre-approved location designated by the EB. The contractor must provide copies of any shipping documents for HW/Universal Waste/Toxic Substances Control Act waste. If the TYAD EPA number is being used for shipping purposes, only EB is authorized to sign a manifest and the manifest (or copy) must be supplied prior to the day of shipment for review. The EB will keep originals. If HW or waste requiring special handling (e.g., asbestos) is being turned over to the government for disposal, the contractor must notify the EB through the COR when the waste is ready to be moved.

17. ISO 14001

TYAD is an ISO 14001 certified facility. All contractor and subcontractor employees on site must comply with TYAD Regulation 200-5, "Environmental Management System (EMS)." The contractor may obtain these regulations through the project COR.

18. Limit of Disturbance

The contractor must confine the limit of disturbance of the project to the smallest area possible.

19. Mercury-Bearing Equipment

The contractor must not install any equipment, switches, or devices (including thermostats) that contain mercury or lead.

20. Safety Data Sheets (SDSs)

The contractor must submit SDSs for all hazardous materials proposed for use, including paints, solvents, adhesives, etc., to the EB through the COR five working days prior to material being brought on post. As of June 1, 2015, all Material Safety Data Sheets (MSDS) must be replaced with new Safety Data Sheets (SDS). EB will no longer be accepting older legacy MSDS sheets and the contractor must submit the current SDS for the hazardous material. The contractor must keep a copy of all SDSs required for the project at the jobsite.

21. Migratory Bird Protection

The contractor is responsible for meeting requirements of the [Migratory Bird Treaty Act of 1918](#) (as amended). The contractor must not disturb any migratory bird, their nesting area or offspring during the implementation of this contract.

22. National Pollutant Discharge Elimination System (NPDES) Permits

The contractor must not perform any work on existing NPDES structures or treatment units unless previously approved in writing by the Installation Planning and Maintenance Division certified operators and the Environmental Branch. This includes work within the sewage treatment plant, sewage lift stations, sewage conveyance pipes, Industrial Operations Facility pretreatment plant, and storm water sewer systems. If a permit is required, it will be the responsibility of the contractor to obtain all permits prior to work being performed. All permit application packages must first be reviewed by the Environmental Branch prior to being sent to any regulatory authority.

23. Net Zero Water

The contractor will minimize the use of potable water during the construction project. Water used during the construction project will be monitored and measured using portable water meters if possible. Installed restroom equipment will consist of high-efficiency fixtures that use reduced volumes of water. Use of flow regulation devices must be approved by EB prior to installation. Employ strategies that in aggregate use 20% less water than the water use baseline calculated for the building after meeting the Energy Policy Act of 1992 fixture performance requirements. Automatic hands-free flushometers will not be used. Water-free urinals will not be used. Flushometers will be the piston variety that fail in the closed position. New building construction and renovations will include installation of a water meter that is capable of being read from the outside of the building.

24. Noise

The contractor must not allow the noise level to exceed 65 decibels at any point outside TYAD property. If noise levels exceed 65 decibels, a plan must be prepared by the contractor to mitigate the noise levels and submit to the EB for approval through the COR. The contractor will monitor the fence line to confirm this limit.

25. Ozone Depleting Substances (ODS)

The contractor must be responsible for ensuring that all personnel who perform maintenance and repair activities on refrigeration equipment have been trained and certified by an EPA-approved [Section 608 program](#). The contractor must not use Class I or Class II ODS or install equipment that contains Class I or II ODS.

25. Paints

The contractor must not use paints containing zinc chromate or strontium chromate pigments and paints must not contain a concentration of lead greater than 0.009 percent. Coatings used within permitted paint spray booths must not have a Volatile Organic Compound (VOC) content greater than 3.50 pounds per gallon.

26. Pest Management

At no time during the execution of this contract must the contractor provide a food source or harborage for any pests. The contractor must coordinate through the COR to the EB prior to application any pesticide usage (PA state license is required for pesticide applications). Pesticides are required to be approved by the EB. The contractor must report all usage of pesticides through the COR to the EB. After completion of the contract, the contractor must ensure there is no passage for pests to enter facilities or structures related to work performed by the contractor.

27. Polychlorinated Biphenyls (PCBs)

The contractor must not bring items containing PCBs onto TYAD. Light ballasts that are clearly marked "Contains no PCBs," or that are marked with a manufacture date after 1978 must be disposed of by the contractor as construction demolition debris. Any light ballast that is not marked as containing no PCBs that has a manufacture date prior to 1978, or that cannot be determined whether it contains PCBs, must be disposed of by the contractor at an approved and licensed facility for PCBs. The contractor must submit a shipping manifest and certificate of disposal of the PCB-containing items to the EB through the COR.

28. Recycling

The contractor must comply with TYADs general recycling plan for recyclable materials such as aluminum, steel, cardboard, paper, plastic and wood. The contractor should contact the EB for additional information on the recycling of materials through the COR. The COR will coordinate with EB to have the contractor recycle metals, cardboard, etc., through TYADs recycling program. All Construction and Demolition (C&D) material transferred from a construction project into the TYAD recycling program must be segregated and material type and weights submitted to the project COR for consolidation. Any material entering the TYAD recycling program that is not documented and properly reported will be absorbed into the TYAD recycling program and not count towards the C&D requirement of the project. Clean wood shall be recycled by the contractor off TYAD property.

29. Refuse and Construction Demolition Debris Removal and Disposal

During the performance of all construction, renovation and demolition projects, a minimum of 60 percent of all non-hazardous construction demolition debris shall be diverted from the landfill for reuse or recycling. The contractor shall provide written certification to the COR of the type and tonnage of debris reused or recycled from the contract. All refuse and the construction demolition debris not recovered for reuse or recycling shall be disposed of at a PADEP permitted and Monroe County Municipal Waste Management Authority authorized facility. The contractor shall comply with the Monroe County Solid Waste Management Plan and PA Act 90, including all licensing requirements. Monroe County has specific landfills that is must be transported to per Monroe County guidance which is available on the county website (<http://www.thewasteauthority.com>) and any contractors can call the Monroe County Municipal Waste Management Authority at (570) 643-6100. The contractor shall provide a disposal certificate or landfill weight slip to the COR for all solid waste disposed of during the performance of this contract. The COR will then provide copies of the disposal certificate or landfill weight slips with the quarterly consolidated C&D report from The Installation Planning and Maintenance Division to EB.

30. Removal Materials

The contractor must remove from the site prior to the acceptance of work by the Government, all materials not identified to remain in place, including excess paints, building materials and equipment purchased by the contractor for the execution of this project.

31. Site Preservation and Restoration

The contractor must ensure that the land resources associated under this contract be preserved in their present condition or be restored to a like condition after completion of construction. This post construction appearance will appear to be natural and not detract from the appearance of the project.

32. Trees and Shrubs Protection

The contractor must be responsible for the protection of all trees and shrubs on site. The contractor must not allow any heavy equipment, vehicular traffic or stockpiling of materials within ten feet from the drip line of any tree. The contractor must not allow any toxic materials to be stored within 100 feet (35.5 meters) of the drip line of any tree. The contractor must not nail protective devices, signs, utility boxes or other objects to trees to be retained on the site.

33. Unexploded Ordnance (UXO)

All work that is done in the UXO area must include the support and clearance by a UXO technician. In addition, all personnel entering the UXO area must have UXO recognition training. The COR will escort the contractor to the EB for UXO recognition training. The COR will provide a map of the UXO area to the contractor.

34. Water Quality

The contractor shall not pollute streams, lakes or reservoirs. All work under this contract shall be performed in such a manner that pollution will not be created in streams, surface waters or underground water located within, or adjacent to the project area. The contractor shall not spill, emit, dump or otherwise discharge any hazardous,

toxic, harmful or unauthorized pollutant, substance or material, including petroleum products, cleaning agents or paints, onto the ground, into the air or into any waters or nearby storm drain. The contractor shall execute any preventative measures required to prevent any hazardous, toxic or harmful material stored or used on the project site from entering any stormwater drain. Nothing shall be allowed to spill, emit, dump or otherwise discharge any hazardous, toxic or harmful material or pollutant into any sink, toilet, drain, utility or receptacle without written permission from the EB through the COR. The contractor shall protect streams, lakes and wetlands from sediment discharges caused by his activities.

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